

IMMIGRATION, LAND TRANSFER AND TENURE CHANGES IN DIVO, IVORY COAST, 1940–80

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The relationship between land tenure forms and the twentieth-century transformation of agriculture throughout much of Africa from a strong subsistence to a market orientation – and from food crop production to predominantly export crop production – is a topic of great importance both to Africanists and to policy-makers. From a scholarly perspective, contemporary Africa presents an unusual opportunity to study dramatic changes in land use and especially in land tenure, similar to changes which took place in other parts of the world as commercial farming developed. From a policy-maker's point of view, too, the current shift in land tenure has major implications for possible government measures affecting security of tenure and land distribution – and, in turn, patterns of agricultural investment, productivity and output.

It appears, however, that the significance of the on-going transformation of African land tenure systems has not yet been fully grasped, either by researchers or by policy-makers. This may be due in part to the relatively limited number of studies of African land tenure that have adopted a historical approach in order to apprehend the magnitude of recent changes. In this article¹ a historical framework is used to analyse the shift from lineage or communal tenure to private or individual tenure, in the case of the Divo Département in the cocoa-growing zone of Ivory Coast from 1940 to 1980. The nature of land tenure changes is highlighted through an analysis of how land has been transferred to immigrants or other African 'strangers', a subject which has also received relatively little attention to date.² It is suggested below that the study of such land transfers can serve as a 'window' through which the broader changes in land tenure and in the agricultural economy can be observed.

In the first part of the article the general development of Divo's economy is described for the 1940–80 period. In the second part, four crucial aspects of land transfer are analysed for Gbehiri and Brabore, two villages in the Divo region: (1) transfer mechanisms; (2) the social relationship embedded in transfers; (3) the size and pace of transfers; and (4) strategies of land transfer. The third part of the article documents some of the cases of social conflict which have emerged out of the dynamics of changing land use and tenure. The concluding part reviews some of the policy implications of the current land tenure situation in southern Ivory Coast.

PAST APPROACHES TO THE STUDY OF AFRICAN LAND TENURE

An examination of the literature on African land tenure suggests that while changes have occurred gradually and unevenly across the African continent during the past 100 years, and even though there are instances of supra-household land-holding groups persisting in a commercial export crop environment, the overwhelming trend in agricultural land tenure patterns in sub-Saharan Africa during the present century has been a shift from communal or lineage-based rights to individual rights (Biebuyck, 1963: 56–64; FAO, 1953; Meek, 1946). A number

of other studies from the colonial period also point to the erosion of earlier forms of lineage tenure, in favour of individual rights to land in Africa; this process is related, overtly or at least implicitly in the ethnographic examples, to the commercialization of agriculture and increasing population pressure on the natural resource base, often accelerated by immigration (Field, 1943; Forde and Scott, 1945; Fortes, 1948; Turner, 1957).

By the same token, even though Dupire (1961) describes the remarkable case of Anyi farmers in the Sanwi District of Ivory Coast invoking ethnic and kinship solidarity to stem the inflows of migrant farmers, she readily admits that the dominant movement in the 1950s among the Anyi, as well as other export crop cultivators in the country, was towards the emergence of individual land tenure and private property, including the division among individuals of unoccupied and fallow land. Dupire saw this movement as linked to the progressive breakdown of larger production units composed of consanguineal kin, and the related fact that the 'economic unity of the household was being reinforced by the advent of commercial crops'. Along similar lines, Berry (1975) states that although in south-western Nigeria patrilineal (*idile*) holdings were in principle inalienable to non-lineage members, by the 1960s the combined effects of tree-crop farming and immigration of 'strangers' into Yoruba country had led to outright land sales by indigenes to the immigrants.

Hill (1963a) is one of the minority of scholars who have argued for the maintenance of 'traditional' corporate forms of land tenure in the face of commercial export farming opportunities. Upon closer examination of her Gold Coast data, however, the patrilineal Shai-Krobo companies cited by Hill – which she admits 'exist nowhere else in the world' (1963b: 210) – turn out to be purely land acquisition groups composed of unrelated persons who hold and cultivate cocoa farms *individually* and bequeath them to their sons; while more recent research by Okali (1983) and others has shown that the matrilineal Aburi 'family lands' described by Hill had, by the 1970s at least, become fragmented into individual farms subject to 'diverging devolution' (Goody, 1976) and resale to non-lineage members.

It is perhaps significant that much of the recent literature on the economy of Africa's commercial farming zones has taken the conjugal household as the self-evident unit for land-holding as well as production (for example, Chauveau, 1975; Gastellu, 1982). These studies do not even allude to pre-existing forms of land tenure built upon supra-household groupings. This may be one indication of the degree to which individual tenure has replaced lineage control over land resources, as smallholder capitalism has increasingly come to characterize the African rural economy.

A historical account of the shift from lineage to individual land tenure can be constructed along three related dimensions: eligibility to use the land; the composition of the units of farm production; and the locus of decision-making in land use and other production activities.

1. **Eligibility.** Under lineage-base tenure, membership in a kinship group, as established through real or fictive ties of consanguinity, is a prerequisite of access to a zone of farmland, which is under the control of the kin group. Such groups generally conform to the unilineal kinship units found in Africa. Under individual tenure, on the other hand, access to land is totally unrestricted. Kinsmen may continue to move on to a piece of unoccupied land by virtue of

membership in the lineage, but non-kinsmen may also pay for rights to cultivate land, while enjoying a fairly high degree of security of tenure.

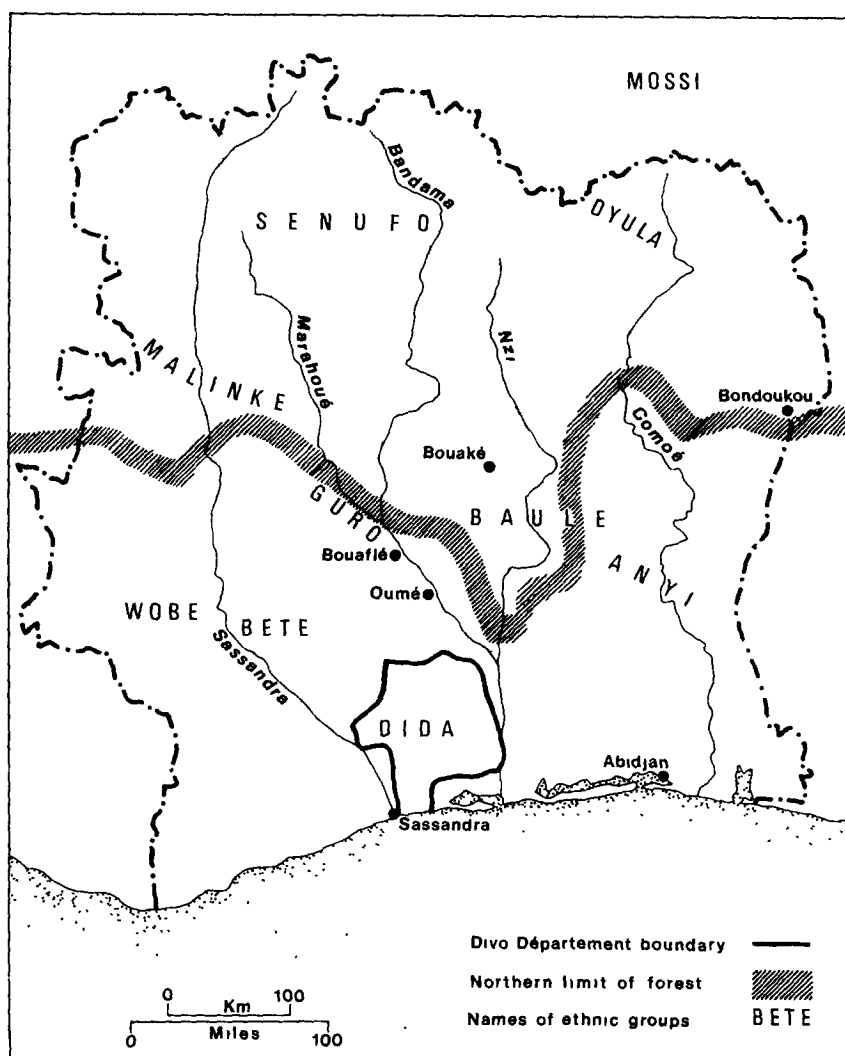
2. **Production Units.** Under lineage-based tenure, production units are composed essentially of lineage mates plus affines, age-mates, friends and clients: in short, of non-wage workers. Production units range from small conjugal groups of two or three persons (a husband plus his wives), to large three-generational stem families comprising more than a dozen workers. Kin-based units tend to be flexible, swelling and shrinking in size in response to the labour demands of different farming tasks. Under individual land tenure, on the other hand, production units are composed of simple conjugal teams of relatively inflexible dimensions, plus varying amounts of wage labour. Non-wage labour tends to decrease in importance, and the wage labour component is adjusted in response to the varied seasonal labour needs of the farm. In the extreme case of an absentee farmer there may be no family labour, hired workers carrying out all the agricultural tasks.

3. **Decision-making.** Under lineage-based tenure the allocation of farmland to kinsmen and decision-making on key production tasks related to planting, harvesting and storage of the crop are the responsibility of the lineage elder or elders. Junior kinsmen and wives often exercise limited autonomy in these matters, but elders ultimately reserve the right to control the food grown for local consumption and the proceeds of any surplus available for exchange. With the advent of individual tenure, on the other hand, farm decisions devolve directly upon the individual exercising use rights over the land. The disposition of the crop, whether for home consumption or for exchange (generally sale), is also left entirely to the individual's discretion.

AGRICULTURAL CHANGE IN DIVO, 1940-80³

During the nineteenth century the administrative unit currently known as the Divo Département, an area of around 15,000 square kilometres in the centre of southern Ivory Coast, was a sparsely populated zone⁴ inhabited by Dida-speaking people.⁵ subsisting through hunting and horticulture of bananas, cocoyam and yams. A major upheaval occurred during 1909-13, when France imposed colonial rule on the Dida through a series of bloody military campaigns, followed by military occupation of the area and eventually the establishment of civilian administration. Early colonial rule (until the 1930s), and specifically its policies of forced resettlement (*regroupement villageois*), forced labour (*corvée*), and forced taxation (*impôt*) of the local population, had important negative repercussions upon the hunting/horticulture economy of the Dida.

Although the colonial authorities tried to persuade the indigenous Dida to grow export crops, including wild rubber, oil palm and cocoa, the Dida showed little interest in production for the export market until after the second world war. Instead, when cocoa and coffee finally did take hold in the Divo Département in the mid-1920s, these crops were cultivated not by the Dida but by expatriates and a small number of non-Dida African 'strangers' with large farms. These were mainly Muslim traders from Mali and Ghanaians who had come to the Département as fishermen or as labourers for French timber companies. In the 1930s the Dida started to plant cocoa on small plots of one or two hectares, controlled by the elders of the agnatic lineages, but their economic importance



Ivory Coast and Divo Département

remained limited until after 1946. A colonial survey in 1941 reported that even though strangers made up less than 5 per cent of the Département's population, they accounted for nearly two-thirds of the 3,026 tons of cocoa and coffee produced that year. Twenty-two expatriate planters with average holdings of 150 hectares each produced 55 per cent of the total output.

Drastic changes in the agricultural economy of Divo Département took place after the second world war. Expatriate cocoa and coffee production declined rapidly as French planters either abandoned their farms or shifted to more profitable crops such as bananas, pineapples and oil palm. At the same time, smallholder cocoa and coffee farming expanded in an unprecedented 'boom'. African migrants from all over Ivory Coast and from neighbouring territories

flooded into the Département, as labourers and as farm owners. Smallholder production of the two export tree crops increased by an average of 8.7 per cent a year during the following three decades. This take-off in smallholder farming was the result of several key factors:

1. The *abolition of forced labour* in the French colonies in 1946, which raised wage rates and ended discrimination favouring expatriates in the recruitment of farm labour. This ensured a steady and plentiful supply of wage labour for smallholders.
2. A post-war *surge in world prices* for cocoa and coffee, especially in the early 1950s, which offered greater production incentives to smallholders in the Département. The world price of cocoa increased eightfold in nominal terms between 1945 and 1954 (Berry, 1975: 224).
3. The *introduction of extensive government services and infrastructure* to assist smallholders, including agricultural credit, selected varieties of cocoa and coffee, feeder roads, and co-operatives.

A crucial dimension of this smallholder revolution in Divo was the massive influx of African migrants. The Département's population grew from around 91,000 in 1948 to 278,000 in 1975, more than tripling in less than thirty years. The proportion of African 'strangers' rose from 6 per cent to 64 per cent during the same period; by 1975 the indigenous Dida, who had earlier been the overwhelming majority, made up only about a third of the population.

Unlike the migrant cocoa farmers of Ghana described by Hill (1963), who came from forest zones near by, the migrants arriving in Divo originated from rural areas all over West Africa. The early post-war migrants tended to be mainly from southern (Anyi, Bete, Wobe, Yakuba) or central Ivory Coast (Baule), while later immigrant waves came from the savannah and sahelian zones to the north (Dyula, Lobi, Mossi, Senufo). The 1975 census of Divo, which actually underestimated the stranger population, recorded as the largest immigrant groups the Baule (20.3 per cent (Mossi (14 per cent), and Dyula (13.9 per cent), followed by Bete, Senufo, Wobe, Yakuba, Guro and Anyi. Results from the 1955 cadastral survey of Datta, a large village located seven kilometres north of the main town of Divo, suggest the magnitude of immigration during the first post-war decade. Seventy-four of the 126 farmers (59 per cent) noted in the survey were non-Dida, including thirty-eight Baule, twenty-five 'southerners' (Wobe, Bete, Guro) and eleven 'northerners' (Malinke, Mossi, Senufo).

Mass immigration gave a major boost to smallholder production, both in absolute terms and in relation to the large expatriate plantations. Total cocoa and coffee production in the Département increased from 5,700 tons in 1947 to 15,450 tons in 1957, 25,000 tons a decade later, and nearly 45,000 tons in 1977 (Table 1). The share of this total belonging to expatriates declined precipitously, from more than half before the war to 16 per cent in 1946, and to a mere 2 per cent by 1956. Smallholders thus rapidly came to dominate the cocoa/coffee sector in Divo.

With the expansion of smallholder tree-crop farming after 1945, the fundamental nature of the rural economy of Divo was altered, from lineage-based to small-scale capitalist production (Meillassoux, 1975; Gudeman, 1978). Before 1945 Dida hunting, horticulture and limited cocoa farming were organized along the lines of the agnatic kinship groups (*lokpá*). Farming and hunting activities requiring

TABLE 1 *Cocoa and coffee production in Divo Département, 1922-77 (tons)*

<i>Year</i>	<i>Cocoa</i>	<i>Share of national output (%)</i>	<i>Coffee</i>	<i>Share of national output (%)</i>
1920	20	2.0	0	0
1928	1,700	11.7	0	0
1938	3,075	5.8	1,091	7.8
1947	2,500	9.2	3,205	7.8
1957	7,053	9.7	8,397	7.6
1968	12,273	8.5	12,512	6.0
1977	31,191	10.5	14,275	7.2

Sources. Archives Nationales du Sénégal, Dakar, Bureau de la Statistique Agricole, Divo.

broad co-operation and heavy labour input (felling trees, spreading nets) were undertaken by the lineage under the elder's supervision (although other tasks such as hunting with traps and planting food crops could be performed individually); the lineage ate its main evening meal together; and the proceeds from the sale of cocoa were held in common by the elder, who was also responsible for paying head taxes and fines, arranging marriages for 'daughters' of the lineage and providing the necessary bridewealth payments for lineage males taking wives.

After 1945, however, the Dida lineage-based system gradually declined under the economic pressures related to export crop production and immigration.⁶ Progressive fragmentation of the lineage as the locus of production took place, with 'brothers' first splitting into several stem families, then the stem units breaking apart into simple conjugal units. Wage employment of strangers became increasingly important as kin and other non-wage forms of labour declined correspondingly. The conjugal household head and his wives now retained their cash earnings, no longer turning them over to the lineage elder. Marriage transactions ceased being a lineage affair and took on an individualistic character, with young men arranging their own matches.

Local attitudes and practices related to land followed this larger pattern of change in the rural economy. Before 1945 planted, fallow and virgin forest land alike was all viewed as part of the lineage patrimony; membership in the lineage and use of lineage land were synonymous. After the second world war, however, land began to be regarded as belonging to individual conjugal households, independent of lineage affiliation, and subject to purchase and sale only by the conjugal units directly involved in the transaction. As the case material presented below shows, this wholesale change in tenure during 1940-80 occurred through a number of intermediate stages.

LAND TRANSFER IN GBEHIRI AND BRABORE

Gbehiri and Brabore are villages located within a 20 km radius of the town of Divo. Brabore felt the impact of immigration earlier than Gbehiri. By 1955 immigrants there already outnumbered native Dida land-holding units by thirty-eight to thirty-three, and held 45 per cent of the land planted to cocoa and coffee

By contrast, in the same year at Gbehiri, there were only seven immigrant farm units versus twenty-four for the Dida, with the strangers holding just 13 per cent of land under tree crops. The different pace of immigration was largely the result of geographical accident: Brabore, 9 km north of Divo, was directly in the path of early Baule migration from Oume, Yamoussoukro and Bouafle, while Gbehiri, 19 km east of Divo, was outside the early migratory route.

TABLE 2 *The population of Gbehiri and Brabore, 1979*

<i>Ethnic group</i>	<i>Gbehiri</i>				<i>Brabore</i>			
	<i>No. of persons</i>	<i>%</i>	<i>No. of households</i>	<i>Average household size</i>	<i>No. of persons</i>	<i>%</i>	<i>No. of households</i>	<i>Average household size</i>
Dida	401	40.8	39	10.3	408	25.7	52	7.9
Baule	217	22.1	20	10.9	506	31.8	54	9.4
Dyula	132	13.4	14	9.4	221	13.9	27	8.2
Mossi	134	13.6	16	8.4	90	5.7	11	8.2
Wobe	50	5.1	5	10.0	93	5.8	11	8.5
Others	48	4.9	6	8.0	271	17.1	37	7.3
<i>Total</i>	982	100.0	100	9.8	1589	100.0	192	8.3

By 1979 the demographic profile of the two communities had become more similar, reflecting the widespread nature of immigration into the Département as a whole (Table 2). Nearly 60 per cent of the population of Gbehiri, and about three-quarters of that of Brabore, were of immigrant origin. In Gbehiri, however, the autochthonous Dida held 65 per cent of the land, and the immigrant farmers owned the balance of 35 per cent; while in Brabore the indigenous smallholders accounted for just 26 per cent of planted land, versus 74 per cent for the immigrants. In both villages the Baule were the largest stranger ethnic group, followed by Mossi, Dyula, Wobe and others. In Brabore a total of twenty-eight different ethnic groups were represented among the smallholder population, indicating the great cultural heterogeneity of post-war rural Ivory Coast.

INDIGENE–IMMIGRANT TIES: ASSIMILATION AND SEPARATION

The first migrant cocoa farmers to arrive in the Divo Département were treated by the Dida in the same way as strangers living in Dida communities during the pre-colonial period: through full cultural assimilation. The pre-colonial precedent for this process was provided mainly by individuals from nearby villages who sought to join a new Dida community after fleeing their homes as a result of defeat in warfare or a serious rift with kinsmen.⁷

The earliest cocoa-farming immigrants in the Département were mainly from the south-western part of Ivory Coast – Bete, Wobe and Yakuba. Many of them had come to Divo to serve their forced labour obligations, working on road construction gangs, timber-cutting crews, or on expatriate plantations. After completing their labour contracts these immigrants settled permanently in the region and sought to create small cocoa and coffee farms. In order to do this, they approached the Dida lineage elder for his permission to clear a part of the

forest belonging to the kin group, and to plant tree crops. In return the immigrant rendered to his Dida host the services normally expected of a junior kinsman towards his lineage elders: periodic labour prestations, remittance of cash from the sale of crops, and strict allegiance to the lineage in cases of conflict with other groups. The immigrant built his compound in the ward of his host elder; he married into the lineage by taking a wife from his host's kin group; and he learned to speak the local dialect of the Dida language.

This was the process of assimilation experienced by strangers in Gbehiri and Brabore during 1940–50. In Gbehiri the first immigrant was a Yakuba, Siaka Ture, who came to the village in 1940 after working as a houseboy for a French official. Ture allied himself with Dangbo Dango, the elder of Dahonnon lineage, working on the elder's farm for three years before planting his own cocoa plot in 1943. In the same year Ture married the elder's brother's daughter (BD) and built a mud and cement-plaster house adjacent to Dago's (the house was still standing in 1980). The second stranger in the village, a Wobe named Kulahi, gained the patronage of Kaku Kuassi, elder of the powerful Tchihiri lineage. He also worked on his elder's cocoa farm, subsequently married the elder's paternal cousin's daughter (FBSD), and planted a small coffee plot of 0.3 hectares in 1942. By 1955 Kulahi had expanded his farm to over three hectares.

During the 1950s and 1960s, as immigration continued apace, this paternalistic relationship between indigenes and strangers, inscribed in the social context and idiom of the agnatic lineage, was gradually replaced by a less personal tie between Dida seller and immigrant buyer of land (and between Dida employer and immigrant farm labourer). Some features of the earlier elder–junior tie persisted, especially when the strangers in question were Dida from other areas of the Département.⁸ For the most part, however, the cultural assimilation of strangers into the local community – genealogically, linguistically, residentially and economically – was succeeded by a system of cultural separation between indigene and immigrant. It is useful to view this transformation in terms of Maine's classical concept of social evolution from relationships based on status to ones founded upon contract.

The strangers who came to Gbehiri and Brabore after 1960 were mainly Baule and northerners – Dyula and Mossi. The Baule, who sought to purchase land for cash as soon as they arrived, built their compounds in the bush instead of settling in the Dida villages; the Dyula and Mossi, who worked as farm labourers before gaining land, established their residences in the village, but without regard for the location of their employers' compounds. The later immigrants did not intermarry with their Dida hosts, generally taking wives from their ancestral villages in the north. Nor did they learn to speak Dida, preserving instead their own native language and otherwise resorting to Dyula-kan (a pidgin version of the Malinke language) as the lingua franca of the Département. The strangers did not provide special services to the Dida ceding land to them, as did the earlier immigrants. The Dida chief of Brabore, in fact, complained in 1980 that many of the Baule smallholders, including Baule who had obtained land from his uncle (the most powerful lineage elder in the 1950s), never set foot in the village or showed any interest in community affairs such as the local primary school and the cocoa-growers' co-operative. 'In the old days, strangers were a part of our family, but now they refuse to show us even the slightest respect,' was his comment.

LAND TRANSFER: GIFT AND SALE

The first immigrants at Gbehiri and Brabore, by virtue of their incorporation into Dida lineages, enjoyed the rights and obligations of junior members of the lineage. They were entitled to use lineage land for cultivating plantains and cocoyam, and for planting cocoa and coffee. The lineage elder simply 'showed' an unoccupied portion of the forest to such an assimilated stranger, who could freely expand the area he farmed as long as he did not encroach on another lineage-mate's plot. This was the case with Siaka Ture and Kulahi at Gbehiri, and with the Malian merchant farmer Dambele, at Brabore.

In the 1950s, however, as the Dida lineage structure weakened and full incorporation of strangers into the *lokpa* lapsed, there emerged a practice of transferring land to immigrants in return for gifts, strongly marked by patron-client relations. Thus Ayedua Kuassi, the first Baule immigrant at Gbehiri, was granted permission to plant cocoa in 1947 by Dangbo Dago, the elder of Dahonnon lineage. In return he gave Dago five bottles of gin, two packages of cartridges for his gun, and two packets of tobacco. Later, in the early 1950s, Kokugnon Blada, a Godie immigrant, was allowed to plant coffee in Brabore by Doka Gbotta, the elder of Kukuelilie lineage. In return he offered the elder two bottles of whisky, tobacco and 500 francs, plus a sack of dehusked coffee every year for ten years. The liquor would be consumed in a ritual celebration to gain the blessing of the land transfer by the spirits of the lineage ancestors. As well as small gifts of tobacco, cloth or money the stranger might give a token annual share of his harvest, typically a sack or two of cocoa or coffee, regardless of the size of the crop.

The land that these strangers were permitted to use was not delimited, either; like the earlier immigrants assimilated into the lineage, many of the strangers in the 1950s were simply 'shown' a portion of the forest by the elder.

As a result of the continued rapid expansion of smallholder production, the increasing scarcity of uncultivated forest, and the growth of wage labour – in short, the emergence of small-scale capitalist farming – the transfer of land in exchange for gift payments had essentially disappeared by around 1960. After this date Dida at Gbehiri and Brabore ceded land in return for lump-sum cash payments of 10,000 francs a hectare or more. A market in land, to be bought and sold as a commodity, was emerging. By the late 1970s the price of forest land had risen to 30,000 to 40,000 francs a hectare, while bearing cocoa and coffee land was selling for more than 200,000 francs a hectare.

From around 1960 onward, land transfers at Gbehiri and Brabore increasingly involved the drawing-up of written contracts (*conventions entre africains*). These contracts spelled out explicitly the size of the parcel being sold and the price, and were frequently accompanied by sketch maps prepared by the government's agriculture department. Some of the earliest contracts at Brabore required the Baule strangers to make annual token payments in cocoa or coffee to the Dida seller in addition to the lump-sum land price, but such gift payments generally lapsed after several years.

As contractual sale became the standard form of land transfer, many of the earlier gift transfers at Gbehiri and Brabore were retroactively formalized under the now accepted contract procedures. *Conventions* drawn up in the 1960s, in Brabore especially, covered hundreds of hectares granted to immigrants more

than a decade earlier. These retroactive contracts yielded millions of francs in windfall revenues for the Dida, and gave the immigrants greater security of tenure and collateral for securing agricultural loans.

Even though a number of the earliest contracts at Brabore stipulated that immigrants had rights of usufruct but not of alienation (stating that if the buyer decided to leave the village the land would revert to the Dida seller), the distinction was never honoured in practice. And after Ivory Coast became independent in 1960, stranger farmers were explicitly granted full rights to alienate land, unless they were wage or sharecrop (*abusa*) labourers (Hill, 1963; Robertson, 1982) on another person's farm. Such alienation was reconfirmed at Gbehiri and Brabore through the sale of land by immigrants to other immigrants (see below).

THE DIMENSIONS OF LAND TRANSFER

Summary data on land transfer from autochthonous Dida to immigrants at Gbehiri and Brabore over the past five decades are presented in Table 3. They suggest three major conclusions:

1. *The greatest volume of land transfer took place in the 1940s and 1950s.* At Gbehiri over 57 per cent of the total was ceded to strangers during 1950–59; at Brabore about 75 per cent of the total was transferred, in equal amounts, in the 1940s and 1950s. After 1960 the volume of land ceded to immigrants dropped off significantly, reflecting both the increasing scarcity of the remaining forest and the related development of a more conservative Dida attitude towards selling farmland. (The data in Table 3 also reflect the arrival of immigrants in Brabore a decade earlier than in Gbehiri.)

TABLE 3 *Land transfer to immigrants, Gbehiri and Brabore, 1930–80*

Decade	Gbehiri			Brabore		
	No. of transfers	Total area (ha)	Average size of transfer (ha)	No. of transfers	Total area (ha)	Average size of transfer (ha)
1930–39	0	0	0	3	35.5	11.8
1940–49	4	136.9	34.2	22	260.1	11.2
1950–59	20	405.0	20.3	63	487.7	7.7
1960–69	10	91.0	9.1	32	160.0	5.0
1970–79	25	72.8	2.9	38	114.0	3.0
Total	59	705.7	12.0	158	1057.3	6.7

2. *Although the pace of smallholder immigration slowed in Gbehiri and Brabore after 1960, land transfer to strangers remained a dynamic force in the economy of both villages.* Even with land becoming scarcer in the two communities, the Dida did not bar strangers from gaining access to it during the first two post-independence decades, 1960–80. In fact the number of strangers obtaining land in Gbehiri in the 1970s reached an all-time high level, even though the area they received continued to decline.

3. *The amount of land transferred to immigrant farming units was closely related to the strangers' year of arrival in the village.* In both villages, immigrants settling earlier had larger land holdings in 1980 than the later arrivals. Average land cessions at Gbehiri, for example, declined stepwise in each decade, from 34.2 hectares in the 1940s, 20.3 hectares in the 1950s, 9.1 hectares in the 1960s and 2.9 hectares in the 1970s. A similar downward trend occurred at Brabore.

Moreover, for each of the main immigrant groups, mean farm size displayed the same downward movement over time; and within any given decade there was little variation in average farm size among the different ethnic groups. For example, Baule strangers arriving at Brabore in the 1970s had average farm size of 2.5 hectares, similar to the farm size for Bete, Dyula, Mossi and Wobe settling during the same decade, even though, overall, the Baule had the largest farms in the village (Table 4). This indicates that the circumstances at time of settlement may have been more important than settlers' own cultural background in determining patterns of economic stratification in the Dida villages. Such a conclusion would tend to suggest a modification of the commonly held view in Ivory Coast that ethnic groups such as the Anyi (Kobben, 1956) and the Baule have been economically more successful than others, such as the Bete, owing to distinctly cultural factors such as kinship structure, bridewealth payment practices, and pre-colonial political structure. While it appears that the cultural features of pre-colonial Ivorian societies may help to explain the relative timing, early or late, of the adoption of export crop farming in different areas of the country, the data from the Dida zone show that, for individual households creating new farms in the same year, cultural factors seem to have little bearing upon farm size, income or other measures of economic standing.

TABLE 4 *Average farm size, by decade of settlement for immigrant groups, Brabore (hectares)*

Decade	Ethnic grouping			Total	Memo item
	Baule	Northerners ^a	Southerners ^b		Native Dida ^c
1930-39	18.0	—	8.8	11.8	—
1940-49	8.2	13.3	20.0	11.2	—
1950-59	6.6	7.8	11.3	7.7	—
1960-69	4.0	6.4	4.8	5.0	—
1970-79	2.5	3.6	3.0	3.0	—
Total	7.3	6.3	5.7	6.4	6.9

^a Includes Bobo, Malinke, Mossi, Senufo and others

^b Includes Bete, Guro, Wobe and others.

^c Since the Dida autochtones are by definition native to the village, no decade of settlement is given; only the average farm size per household is calculated.

At Gbehiri only six Dida – all of them lineage elders – granted land to strangers before 1970, with three elders accounting for 80 per cent of the land transfers during this period. After 1970, however, with the indigenes using forest land

as a magnet for attracting labourers, the number of Dida transferring land rose to sixteen, the majority of these being young heads of conjugal households. At the same time a process of secondary transfer began, with four cases of strangers granting land to other strangers. Both these developments confirm the hypothesis stated earlier, that during the 1960s lineage control of land ended at Gbehiri and was superseded by individual tenure. This meant that the elder no longer held his earlier prerogative in matters of land transfer to outsiders, and that by the 1960s transfer implied surrendering rights of alienation as well as usufruct, since an immigrant could further transfer his land to a third party.

STRATEGIES OF LAND TRANSFER

Underlying the land transfer practices in the Divo Département are a series of strategies more or less consciously employed by the parties involved. In the same way that the land tenure system itself, and particularly the pattern of land transfer, changed in important ways during 1940–80 so too did these strategies of transfer.

During 1940–55 the Dida lineage elders pursued an essentially political strategy of land transfer to immigrants, in order to increase the strength of the agnatic kin group. By incorporating strangers into the lineage, as in the pre-colonial era, the elder expanded the number of persons in the group, as control over human beings was vitally important to the productive and reproductive success of the lineage. Strangers provided additional labour for lineage production of food and export crops, and they supported the lineage in the chronic disputes with other groups over access to hunting and farming territory.

As the sale of land to immigrants for cash became a common practice in the late 1950s strangers were no longer fully incorporated into the lineage, yet the strategy of land transfer by elders at Gbehiri and Brabore continued to serve some of the same lineage objectives as before, even though the control of the lineage over land was beginning to weaken at that time. In the 1950s elders began to sell land for cash, which in turn had become the bridewealth medium for procuring wives for the lineage (bridewealth payments themselves escalated rapidly during this period).⁹

Forest land located far from the Dida village itself was also sold to immigrants as a way of pre-empting the claims of neighbouring lineages upon the same territory (cf. Francis, 1984: 19–20, on Ijesha). Occupancy was tantamount to control in the case of these territorial disputes, and one common way for a lineage elder to occupy the land was to install 'his' strangers on it. In Brabore, Tutukpe, the elder of Kukuelilie lineage, ceded land to Dambele, a Dyula, in order to advance his disputed claim to forest near the neighbouring village of Datta. He also sold to a group of six Wobe a piece of land which was being hotly contested by both his lineage and a lineage in the nearby village of Bada.

With the emergence of small-scale capitalist farming and individual tenure in the Département around 1960, Dida household heads adopted a different strategy of land transfer to strangers – essentially an economic (rather than political) strategy aimed at increasing household wealth. Land was sold to immigrants for cash, not to meet bridewealth payments, but as a means of paying farm labourers to clear forest, cut the weeds and underbrush on cocoa farms, and harvest the crop. Cash thus became a wage fund rather than a bridewealth fund. Moreover, the potential transfer of land to immigrants became a very important 'magnet'

for attracting hired labourers to work on Dida cocoa and coffee farms. A labourer was likely to work and remain on a Dida farm for a number of years only if he saw prospects of eventually buying a piece of land from his employer and creating his own smallholdings. At Gbehiri, for example, Umaru Kabore, a Mossi immigrant, came to the village in 1966 precisely because he had heard from his Mossi compatriots that there were good opportunities for obtaining land from the indigenes. He served as a piece-rate worker and *abusa* sharecropper for five years before his Dida employer, Aphia Komenan, gave him two hectares in return for 6,000 francs in gifts. He subsequently continued to work as Komenan's sharecropper while tending his own two hectare cocoa farm.

In this example, a steady, secure supply of wage labour was the most important motivation for the Dida farmer to transfer land to a stranger; the cash payment he might receive for the land was almost incidental. After 1960 Dida farmers, as small-scale capitalist producers, followed an economic strategy of ensuring access to the main factors of tree-crop production: (wage) labour, capital (for tools, insecticide sprayers and fertilizer), and land (suited to cocoa/coffee-growing). As farm labour tended to be the scarcest of these factors – despite the presence of millions of immigrants in Ivory Coast – Dida farmers were generally prepared to sacrifice small portions of their least productive land as a necessary means for securing additional hired labour.¹⁰

SOCIAL CONFLICTS OVER LAND TENURE

Even though the transition from lineage-based to individual land tenure in the Divo Département was relatively smooth, it did inevitably generate social conflicts at various levels. Boundary disputes involving two Dida lineages, either within the same village or from neighbouring villages, sometimes occurred, as the examples below indicate. These disputes arose largely because, under the pre- and early colonial conditions of sparse population and hunting/horticulture as practised in Dida country, lineage territory was never precisely delimited. With the adoption of tree-crop cultivation and subsequent large-scale immigration into the area, however, lineage control over land became acutely important. Even with the weakening of lineage authority after 1945, boundary disputes between lineages re-emerged in a different guise, as conflicts between individuals from the opposing kin groups, as illustrated by the following case brought before Ivorian officials in 1979:

Yao Gbetto (Dida) *v.* Dedji Sokon (Dida), villages of Dagolilie and Kobedegore. Sokon was accused of crossing the river purportedly marking the boundary between the two villages, and of encroaching on Gbetto's land to create a cocoa farm. It was ruled that henceforth the river was to be recognized as the correct boundary. Sokon was to be paid 84,500 CFA francs by Gbetto for his investment in the disputed farm, which would then be turned over to Gbetto.¹¹

A more common type of dispute resulting from land tenure changes in Divo, however, involved members of the same lineage. In the 1950s and 1960s some junior lineage males expressed their opposition to the elders' cession of land to strangers through gift and sale, especially in cases where the younger lineage members perceived that the elders no longer supported them, for example, through bridewealth payments.

Tayoro Kokua of Kudulilie lineage in the village of Sassatro reported that in the 1960s he opposed the sale of land by the kin group elder, Guebo Gneza, to several Djula sharecroppers. When Kokua's brother Dogu and two other lineage members also joined in opposition to the sale, Gneza eventually relented. Not surprisingly, Kokua was an ambitious cocoa farmer with a large number of sons seeking land, while Gneza was childless.

By the 1970s intra-lineage land conflicts in Divo had lost their elder-junior dimension as the elders' authority was eroded; instead, the occasional disputes that materialized involved brothers or cousins:

In Brabore village in 1979 Kuadio Koffi and his younger brother Kuadio Urega were refusing to speak to one another because Koffi had agreed to give five hectares of fallow land to his sister's husband Gbehi of the neighbouring Kukuelilie lineage. Urega opposed the sale, since he had no more of his own land to plant to cocoa and felt that Koffi should give him priority access to the fallow 'lineage' land; he said he was ashamed of his older brother's actions. Koffi, a blind, elderly man, justified his decision by saying that the land in question belonged to him, not to the lineage, and he had decided to favour his brother-in-law, since the latter had taken care of him in his old age. Gbehi had already occupied the five hectare parcel, but in order to defuse the situation he had planted cocoa only on the area farthest from Urega's abutting farm so that Urega would not see the work in progress

Finally, land disputes could also develop between the indigenous Dida and immigrants. In the 1950s these usually revolved around the immigrants' refusal to meet their obligations to their Dida patrons, either in the form of labour services or nominal payments in kind. By the 1970s such obligations were no longer seen as legitimate, even by most Dida. Instead, Dida-stranger disputes generally centred upon boundary definitions:

In Brabore in 1980 Umar Dambele, a Djula, was threatening to take Dadie Gowa of Degobe lineage before the administrative tribunal to gain uncontested possession of ten hectares which he claimed had been ceded to his father, Musa, in the 1950s. Gowa maintained that he had never ceded the land to Umar's father, intending to reserve it for his children's future use

SUMMARY AND CONCLUSION

In their earliest reports, written in 1908-10, French colonial officials had described the Divo Département as a vast rain forest, sparsely inhabited by groups of Dida practising hunting, plantain horticulture, and the desultory collection of wild rubber and palm kernels for sale to African and European traders at Tiassale, 50 km to the east on the Bandama river. Seventy years later, in 1980, Divo had become the most important cocoa-growing district in Ivory Coast (itself the largest cocoa-producing country in the world). This export agriculture was based, in 1980, on 45,000 peasant families, two-thirds of whom were African immigrants from other parts of Ivory Coast and from neighbouring states. In addition to cocoa, the Département had also become a major producer of coffee and oil palm for export, and of food crops, including plantains and yams, to be marketed in Abidjan, the capital.

I have shown that the highly dynamic process of agricultural development in Divo, especially during 1945-80, entailed a significant shift in land use and land tenure patterns. In the early decades of colonial rule, Dida lineages controlled

large territories which were exploited through hunting and horticulture. By virtue of their membership in a kin group, men and women were permitted to hunt and to clear patches of forest for annual food gardens. Land use was regulated by the lineage elders, who also supervised food consumption and exchanges of surplus production with other lineages and with traders. By the post-independence decades of 1960–80, however, this situation had changed drastically. Conjugal households, including both Dida and strangers, controlled plots of land which were heavily planted with cocoa and coffee. These plots were widely bought and sold by Dida and immigrants alike. Land use and alienation decisions devolved directly upon the household head,¹² who relied on hired workers to supplement the labour of household members.

While rapid economic change in Dida country did generate a series of (generally non-violent) conflicts over agricultural land tenure, neither the earlier lineage-based nor the later individual system appears to have been a serious impediment to the region's agricultural development, in contrast to the situation reported in other parts of Africa (Jacoby, 1971). On the contrary, the local tenure practices, reinforced by government policies allowing immigrants to own farms, encouraged fairly open access to productive land in the Département; the relative abundance of forest land, the broad participation of smallholders in the cocoa sub-sector, and the unstratified nature of pre-colonial Dida society permitted a reasonably equitable distribution of land in the Département, with little landlessness to date (in contrast to the skewed distribution and landlessness reported in much of Latin America and Asia); and smallholders in Divo enjoyed adequate security of tenure to impel them to invest heavily in slow-maturing tree crops (cf. Francis, 1984: 20–1). In the future, increasing subdivision of farms among male heirs in the most densely settled areas of the Département, to the point where the farms become too small economically to sustain the household, may eventually pose a problem. However, this threshold has not yet been reached.

From the Ivorian government's point of view the most pressing land tenure policy issue in Divo in 1980 was a legal-administrative one. The commonly used land transfer contracts (*conventions*) had never been legally recognized by Ivorian courts, even though they were frequently used as an administrative device, first by colonial officials and after 1960 by Ivorian civil servants. In other words, the *conventions* had no basis in law, since Ivorian land law was based on the French legal concept of title (*titre foncier*). As a result, the issuance of the contracts and the settlement of land disputes between two parties was handled informally, on an *ad hoc* basis, by officials of the government agriculture service. In the absence of clear guidelines in these matters, there were the inevitable cases of abuse by public officials, such as exorbitant fees charged to smallholders for preparing sketch maps of their farms and bribes extracted in return for favourable decisions in land dispute cases. In addition, officials' judgments in these cases tended to be arbitrary, inconsistent and sometimes erroneous, as they were not based on well-defined principles of land ownership and usage.

In order to correct this situation, the Ivorian government will need to adapt its legal system to the current realities of smallholder farming, by integrating into Ivorian land law the very widespread use of transfer contracts. In addition to recognizing the *conventions* as legal documents, the government will also have to formulate standard procedures fees for the issuance of these contracts, as a way of protecting farmers from future abuses. Finally, policy-makers will need

to promulgate standard guidelines for judging land disputes concerning boundary demarcation, property damages, and other common areas of contention, so that the government can act as a fair and consistent arbiter in these land cases.

NOTES

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² Notable exceptions are studies of Yoruba farmers in south-western Nigeria by Sara Berry (1975), Clarke (1981) and Francis (1984), and Polly Hill's work in southern Ghana (1963b).

³ The information in this article on agricultural development in Divo is generally contained in Hecht (1981).

⁴ Colonial authorities, in their first census of the region, estimated the population in 1911 to be 30,000, an average of only two persons per square kilometre.

⁵ The Dida are the easternmost Kru-speaking group in Ivory Coast, inhabiting an area immediately to the west of the Bandama river, which marks the boundary separating the Kru and Akan-speaking zones of West Africa. A more detailed discussion of Dida ethnic identity may be found in Terray (1969: 15–37) and Hecht (1981: 33–8).

⁶ The process of lineage demise was uneven in practice, both in time and space; the year 1945 should be viewed only as a rough marker for this change.

⁷ In the pre-colonial era Dida lineage segments often hived off from a larger kin group, as was the case reported among the Guro of southern Ivory Coast (Meillassoux, 1964).

⁸ A few immigrants after 1960 continued to offer gifts of bottled gin and whisky to the Dida ceding land to them, even though cash payment had become the standard practice.

⁹ Kobben (1963: 256) remarked upon this strategy of land sale among the Bete, the Dida's neighbours, 'Apart from plain covetousness, [the elders'] motive may also be the need to continue playing the traditional role of segment elder (viz. to have enough money for the marriage payments).'

¹⁰ This helps to explain the fact that most land sales in Gbehiri and Brabore in the 1960–80 period involved (i) immigrant buyers who had already served as labourers, (ii) small plots of less than three hectares, i.e. of sufficient size to satisfy the strangers while reserving most of the best land for the Dida seller, and (iii) generally the poorest quality land, with immigrant cocoa yields only a third of the level obtained on Dida farms.

¹¹ This case is taken from the records of the Service d'Agriculture, Divo.

¹² Over 90 per cent of the household heads surveyed in the Département were men, with women constituting the remaining small minority of the *chefs de ménage*. Wives of male household heads exercised a high degree of decision-making autonomy, however, in matters related to food crops, including plantains, palm oil, and vegetables sold for cash.

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Résumé

Immigration, transfert de terres et changements de régimes fonciers à Divo, Côte d'Ivoire

Le rapport entre les formes de régimes fonciers en Afrique et la transformation de l'agriculture du XX siècle sur la majorité du continent, en partant de la subsistance jusqu'à une orientation de marché et de la production de cultures alimentaires à la production de cultures d'exportation, est un sujet de grande importance pour les intellectuels et formulateurs de politique agricole. Un examen des écrits à ce sujet et de ceux du propre cas de l'auteur suggère que la tendance écrasante dans les types de régimes fonciers agricoles a été un transfert des droits communaux aux droits individuels. Dans cet article, un cadre historique est utilisé pour analyser le transfert du régime foncier de famille au régime foncier individuel dans le département de Divo dans la zone de plantations de cacaoyers

de la Côte d'Ivoire entre 1940 et 1980. Les changements dans le système foncier sont mis en évidence par une analyse du processus de transfert de terres aux émigrants, un sujet qui a reçu jusqu'à présent peu d'attention de la part des intellectuels.

Les attitudes et les pratiques locales se rapportant à la terre ont suivi les types les plus importants de changement économique rural à Divo. Avant la deuxième guerre mondiale, toutes les terres en tous genres étaient considérées comme appartenant aux familles. Plus tard la terre fut considérée comme appartenant aux ménages conjugués individuels, indépendamment de leur affiliation familiale, et pouvait être achetée ou vendue seulement par des unités conjugales directement concernées dans la transaction. Pour apparaître, ce changement total de régime foncier traversa un nombre de phases intermédiaires.

Le développement économique général de Divo au cours des années 1940-80 est décrit, spécialement l'apparition de petits exploitants produisant café et cacao et le déclin de plantations étrangères à grande échelle. Ensuite, quatre aspects importants de changements de transfert de terre sont analysés pour Ghebiri et Brabore, deux villages des Dida: (1) mécanismes de transfert, à partir du don jusqu'à la vente; (2) rapports sociaux impliqués dans les transferts, allant de l'assimilation des immigrants à leurs séparations culturelles; (3) la taille et le rythme des transferts avec la taille moyenne de la parcelle déclinante et la longueur moyenne du service du travail des immigrants augmentant au fur et à mesure du temps; et (4) les stratégies de transfert, des stratégies politiques poursuivies par les anciens de la famille aux stratégies économiques suivies par tous les chefs de famille indigènes. Le changement de l'emploi des terres et des régimes fonciers cause quelque conflit social, mais néanmoins ces changements ont eu lieu et n'ont pas sérieusement empêché le développement agricole de la région. Finalement sont considérées quelques unes des implications de la politique de la situation actuelle du régime foncier en Côte d'Ivoire. Il est suggéré que les autorités devraient utiliser des procédés plus formalisés dans l'arbitration des cas de disputes des terres.

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